

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 16-16

MAVL CAPITAL, INC., IAM & AL GROUP INC. and MAXIM OSTROVSKIY,
(Complainants)

v.

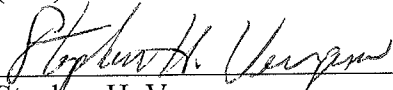
MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,
(Respondents)

RESPONDENT MARINE TRANSPORT LOGISTICS, INC.'S
APPENDIX OF DOCUMENTS IN REPLY TO COMPLAINANTS' PETITION TO
SUPPLEMENT EXCEPTIONS

April 9, 2014 Declaration by Maxim Ostrovskiy, submitted in E.D.N.Y. 14 Civ. 7110, and
Exhibit A.....“1”

Dated: March 9, 2017
New York, NY

Respectfully submitted,
MONTGOMERY McCracken
WALKER & RHOADS, LLP
Attorneys for Respondent
Marine Transport Logistics, Inc.
437 Madison Avenue, 29th Floor
New York, NY 10022
(212) 867-9500



Stephen H. Vengrow
Eric Chang

RESPONDENT APPENDIX “1”

April 9, 2014 Declaration by Maxim Ostrovskiy,
submitted in E.D.N.Y. 14 Civ. 7110, and
Exhibit A to Declaration

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

Marcus A. Nussbaum, Esq. (MN 9581)
P.O. Box 7042
New York, NY 10116
Tel: 201-956-7071
Fax: 347-572-0439
Attorney for Plaintiffs
marcus.nussbaum@gmail.com

MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY, <i>Plaintiffs,</i> — vs. — MARINE TRANSPORT LOGISTICS, INC., ROYAL FINANCE GROUP, INC., CAR EXPRESS & IMPORT INC., ALEKSANDR SOLOVYEV, DIMITRY ALPER, and JOHN DOE CORP., the unidentified Vessel Operating Common Carrier/Ocean Liner, <i>Defendants.</i>	CIVIL ACTION Docket No.: 1:13-cv-07110-SLT-RLM
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**DECLARATION IN FURTHER SUPPORT OF ORDER TO SHOW
CAUSE FOR PRELIMINARY INJUNCTIVE RELIEF**

Maxim Ostrovskiy, declares the following to be true under penalties of perjury of the United States of America, and says:

BACKGROUND

1. I am a principal of both plaintiffs herein known as MAVL CAPITAL, INC. ("MAVL"), and IAM & AL GROUP INC. ("IAM"), which are automobile importers/exporters, and as such, I am fully familiar with the facts. I have read the statements set forth in the papers submitted in opposition to plaintiffs' instant application for a preliminary injunction, and I

respectfully submit this declaration in reply thereto. For purposes of brevity I incorporate by reference the acronyms used for naming the defendants as set forth in my initial declaration in support ("MTL", "RFG" and "Car Express").

**PLAINTIFFS' REPLY TO DEFENDANTS ALLEGATIONS REGARDING EACH
SPECIFIC VEHICLE**

The 2006 Mercedes SL65 (VIN# Ending in 3072)

2. With regard to this specific vehicle, I agree with defendant Alper's statement that by May 9, 2003, plaintiffs had incurred an unpaid balance of \$900.00 in storage charges, however, I contacted MTL and Mr. Alper multiple times in an effort to pay the balance due for storage and to obtain the release of the vehicle, to no avail.

3. MTL and Alper now admit that this vehicle was sold to satisfy "outstanding debts owed by plaintiffs" as set forth on page "2" of defendants' memorandum of law. Per the attached bill of lading received from MTL's counsel after the start of this litigation, annexed hereto as **Exhibit "A"**, the defendants unlawfully converted this vehicle and shipped it to the United Arab Emirates. As the court may recall, I hired the defendants to receive this vehicle from another shipper that had shipped it from overseas, and I specifically requested that the defendants store it on my behalf. By the terms and conditions of the storage invoice annexed as Exhibit "A" to the Alper Declaration, the defendants were not entitled to exercise a maritime lien for this vehicle as it was for storage only.

4. Furthermore, the defendants have unlawfully sold this vehicle as there was never a bill of lading issued by the defendants for this vehicle at my request (because defendants did not ship it, they only stored it, as proven by the Entry Summary in Exhibit "A" which establishes that this vehicle was owned by MAVL), and thus no basis for defendants to exercise a maritime lien. Defendants have admitted that the \$900.00 due for this vehicle was for storage charges

only. This entirely begs the question as to what basis the defendants had to convert and ship this vehicle, owned by me, to the United Arab Emirates.

5. Upon information and belief, defendants' have further failed to follow all legal prerequisites to selling this vehicle, such as notifying the owner prior to the sale, and the requirement that defendants obtain valid title this vehicle. Defendants have further failed to provide documentation establishing that a sale took place, nor have they come forward with the specific sum realized from the sale of the vehicle.

6. In addition, the exporter and the consignee listed on this bill of lading are unknown parties that have no relationship with the plaintiffs, thus further establishing that the defendants unlawfully converted this vehicle for the purposes of shipping it overseas and selling it for a profit.

7. Therefore, as a result of defendants' unlawful conversion of this vehicle, I am entitled to damages in the amount of \$39,931.81 which should be offset against the total bond amount which this Court orders to be posted at the conclusion of oral argument on the application for the preliminary injunction. The sum of \$39,931.81 includes the sum of \$25,615.00 paid to purchase this vehicle, \$1000 for shipment from the U.S. to Germany for repairs, \$7000.00 expended on repairs of the vehicle in Germany, and \$6316.81 in freight, U.S. customs clearance and other charges for shipment of this vehicle back to the United States¹.

The 2004 Bobcat S205 (VIN# Ending in 1404)

23. With regard to this specific vehicle, the Court is respectfully referred to defendants' bill of lading for this vehicle, annexed to the Alper Declaration as Exhibit "E". Notably, the bill of lading fails to list a consignee and simply states that the vehicle is consigned "TO THE ORDER OF SHIPPER". This is inconsistent with the statements made by Alper and

¹ See Exhibit "A".

Solovyev, *in their declarations and under penalty of perjury*, that plaintiffs requested that MTL and Car Express load this vehicle into a container for shipping with a Consignee designated as "OOO ACCA LOGISTIC" in Saint Petersburg. In addition, OOO ACCA LOGISTIC in Saint Petersburg is owned by defendant Solovyev and his wife, Alla Solovyeva.

24. Therefore, upon information and belief, either the emails referred to by defendants or the bill of lading were fabricated by the defendants after the start of this litigation. At no time, and despite numerous requests, were plaintiffs ever provided with a bill of lading for this vehicle.

25. In addition, the defendants were aware, at all times, that this was a leased vehicle pursuant to a lease between plaintiffs and Lift Incorporated. Defendant Solovyev acquired a copy of the lease in early June of 2013, which had allowed MTL to pick up the vehicle on plaintiffs' behalf, and deliver it to MTL's warehouse, as stated in Solovyev's email of July 11, 2013, a copy of which is annexed hereto as **Exhibit "B"**.

26. The defendants are further aware that it is illegal to export a leased vehicle without the consent of the actual and true owner of that vehicle. Therefore, even if it were possible that I may have inadvertently requested that defendants export this vehicle, as stated in their affidavits, the defendants were under an obligation, pursuant to U.S. Customs and Border Protection rules and regulations, Federal Maritime Law, and state law, to refrain from shipping this vehicle and to inform me that shipment would not be possible.

27. In addition, in order for the defendants to issue a bill of lading which contains a valid export declaration (i.e., the "AES ITN" number) in accordance with U.S. Customs and Border Protection rules and regulations, the defendants were required to obtain an original invoice from MAVL which would established that MAVL sold the vehicle to an overseas

customer. I never provided an invoice for the export of this vehicle, therefore, the AES ITN number listed on defendants' bill of lading ("AES ITN: X20130806042115") was fraudulently created.

28. Furthermore, together with an invoice establishing that MAVL sold this vehicle, the defendants are also required to present U.S. Customs and Border Protection with a purchase invoice from the original owner of the vehicle (in this case, Lift Incorporated) in order to ship this vehicle, and, as set forth above, defendants only had a lease, so in this case, it was defendants' responsibility to refrain from shipping this vehicle.

29. The Court is further respectfully referred to a copy of a cover email from myself to the City of Lancaster Police Department, dated October 7, 2013², which accompanied a police report which I filed as a result of defendants' theft of this vehicle. I copied defendant Solovyev on this email, therefore he was fully aware of the disposition of this vehicle and its illegal shipment overseas prior to perjuring himself before this Court.

30. Therefore, as a result of the foregoing, and as a result of defendants' unlawful conversion of this vehicle, plaintiffs should not be obligated to post a bond for this vehicle and the defendants should be ordered to return it to the United States at their own expense. In addition, plaintiffs request that the Court order defendants to indemnify plaintiffs from any claims for damages asserted by Lift Incorporated, or, in the alternative, that defendants return the vehicle to Lift Incorporated, and that defendants: (1) pay any amounts due and owing to Lift Incorporated; and (2) return plaintiffs' deposit of \$9434.00.

The 2006 Bobcat S250 (VIN# Ending in 2346)

31. With regard to this specific vehicle, the Court is again respectfully referred to defendants' bill of lading for this vehicle, annexed to the Alper Declaration as Exhibit "E".

² Annexed hereto as Exhibit "C".

Notably, the bill of lading fails to list a consignee and simply states that the vehicle is consigned "TO THE ORDER OF SHIPPER". This is inconsistent with the statements made by Alper and Solovyev, in their declarations and under penalty of perjury, that plaintiffs requested that MTL and Car Express load this vehicle into a container for shipping with a Consignee designated as "OOO ACCA LOGISTIC" in Saint Petersburg. In addition, OOO ACCA LOGISTIC in Saint Petersburg is owned by defendant Solovyev and his wife, Alla Solovyeva.

32. Therefore, upon information and belief, either the emails referred to by defendants or the bill of lading were fabricated by the defendants after the start of this litigation. At no time, and despite numerous requests, were plaintiffs ever provided with a bill of lading for this vehicle.

33. Therefore, as a result of the foregoing, and as a result of defendants' failure to provide a bill of lading and an invoice for this vehicle prior to the start of litigation, plaintiffs should be entitled to the release of this vehicle after posting a bond for \$800 in freight charges per Exhibit "F" of the Alper declaration, and should not be responsible for the additional storage charges for this vehicle.

The 2010 Bobcat S185 (VIN# Ending in 8388)

34. With respect to this specific vehicle, the record has established that the value of this vehicle is \$18,850.00.

35. MTL and Alper now admit that this vehicle was sold to satisfy "outstanding debts owed by plaintiffs" as set forth on page "2" of defendants' memorandum of law. My attorney advises me that the defendants have unlawfully sold this vehicle as there was no basis for defendants to exercise a maritime lien.

36. Upon information and belief, defendants' have further failed to follow all legal

prerequisites to selling this vehicle, such as notifying the owner prior to the sale, and the requirement that defendants obtain valid title this vehicle. Defendants have further failed to provide documentation establishing that a sale took place, nor have they come forward with the specific sum realized from the sale of the vehicle.

37. Furthermore, the bill of lading for this vehicle, annexed to the Alper declaration as Exhibit "G" fails to contain the appropriate export declaration information (i.e. the "AES XTN" number, in clear violation of U.S. Customs and Border Protection rules and regulations.

38. Therefore, upon information and belief, the bill of lading was fabricated by the defendants after the start of this litigation. At no time, and despite numerous requests, were plaintiffs ever provided with a bill of lading for this vehicle.

39. As a result of the foregoing, and as a result of defendants' unlawful conversion of this vehicle, plaintiffs should not be obligated to post a bond for this vehicle. In the alternative, plaintiffs request that the amount of \$5,850.00 already paid by plaintiffs for this vehicle be deducted from the total amount of the bond which this Court orders to be posted at the conclusion of oral argument on the application for the preliminary injunction.

The 2011 Porsche Panamera

40. With respect to this specific vehicle, and as alleged in the Complaint, defendants MTL and Solovyev failed to release the vehicle and failed to provide me with the whereabouts of this vehicle, although its release was duly demanded. As set forth in Complaint, this vehicle was purchased by IAM under an agreement with MTL that it would be shipped overseas via MTL and sold to an overseas customer. Specifically, this vehicle was destined for shipment to the port of Kotka, in Finland. This Court is specifically referred to Exhibit "D" to the declaration of defendant Solovyev, which contains an invoice from Royal Finance Group which charges for

"Shipping to Kotka".

41. Defendants now admit, as set forth on page "2" of defendants' memorandum of law, that this vehicle is currently located in Dubai. Per the attached bill of lading received from MTL's counsel after the start of this litigation, annexed hereto as Exhibit "A", the defendants unlawfully converted this vehicle and shipped it to the United Arab Emirates.

42. In addition, the exporter and the consignee listed on this bill of lading are unknown parties that have no relationship with the plaintiffs, thus further establishing that the defendants unlawfully converted this vehicle for the purposes of shipping it overseas and selling it for a profit.

43. Furthermore, based upon the declaration of Dimitry Alper, the financing for this vehicle was arranged between plaintiffs and defendant Royal Finance Group. The Solovyev declaration similarly states that Car Express purchased this vehicle with financing provided by Royal Finance Group, and page "2" of defendants' memorandum of law also explains that the amount due for this vehicle is "owed to Royal Finance Group". In addition, the invoice for this vehicle was issued by Royal Finance Group for "Shipping to Kotka". This is notable as neither Car Express nor Royal Finance Group issued a bill of lading for this vehicle and neither of them are an NVOCC, thus there is no basis for defendants to exercise a maritime lien for this vehicle.

44. This entirely begs the question as to what basis the defendants had to convert and ship this vehicle, owned by me, to the United Arab Emirates.

45. As a result of the foregoing, and as a result of defendants' failure to deliver this vehicle to its proper destination, plaintiffs should not be obligated to post a bond for this vehicle. Furthermore, plaintiffs are entitled to the return of \$15,500.00 paid for this vehicle plus the additional \$2900.00 paid for the parts used for the repair of this vehicle (See **Exhibit "C-1"**)

which should be offset against the total amount of the bond.

The Hummer Seats

46. Plaintiffs consent to posting a bond in the amount of \$1,160.00 for the release of these seats, however, as a result of defendants failure to provide a bill of lading or an invoice prior to the start of litigation, defendants are obligated to indemnify plaintiffs for the \$4775 in storage charges.

The Three Harley Davidson Motorcycles

47. With respect to the three Harley Davidson Motorcycles, the Court is respectfully referred to the email dated November 8, 2013 from defendant Alper to Simon Kaganov of Unitrans-PRA, which was annexed to the Complaint as Exhibit "O", in which Alper states that he has "obtained original title for Motorcycle Harley Davidson vin #133838" and in which he requests to pick up said vehicle. Notably, in paragraph "35" of his Declaration, Alper states that he "did not obtain a replacement title for the 2007 Harley Davidson FXD (VIN # 1645) from the State of Georgia, yet he fails to offer any response as to plaintiffs' allegations that he unlawfully obtained title to the Harley Davidson (VIN #133838).

48. The declarations of Alper and Solovyev further fail to offer any substantive response to plaintiffs' allegations that MTL, Care Express, Alper, and Solovyev have refused to authorize Unitrans to release all three motorcycles to their proper consignees, despite my requests that the defendants do so.

49. In addition, annexed hereto as **Exhibit "D"** is a copy of a power of attorney from defendant Solovyev to a Mr. Oleg Gendelman, in which he authorizes Mr. Gendelman to receive the three motorcycles on his behalf, which is also inconsistent with the statements made in the declarations of Alper, and Solovyev.

50. In sum, the defendants' response on the issue of these three motorcycles do no more than point the proverbial finger at each other, and offer no resolution to plaintiffs' claim.

51. Therefore, in light of defendants' failure to offer a substantive response on the issue of these motorcycles, it is requested that the Court order that they be released by the defendants, and that the defendants be ordered to indemnify plaintiffs for any storage charges accrued for these vehicles.

The 2010 Mercedes GL (VIN# 2062) and 2012 Mercedes ML (VIN # 8732)

52. As stated in the Complaint, by summer of 2013, I had lost faith in MTL's ability to ship or deliver various automobiles as agreed. As a result thereof, MAVL retained the services of a freight forwarding company not a party to this action, and known as TRT International ("TRT").

53. On or about May 29, 2013 MAVL hired TRT for the export of a 2010 Mercedes Benz GL, VIN # ending in 2062, and on or about July 17, 2013, MAVL hired TRT for the export of a 2012 Mercedes Benz ML, VIN # ending in 8732. Copies of the house bills of lading for these vehicles are annexed to the Complaint as Exhibit "P".

54. Upon information and belief, there is no relationship between TRT and RFG, nor is there any relationship between TRT and MTL.

55. In light of defendant Solovyev's response set forth in paragraphs "28 through "31" of his declaration regarding these vehicles, and specifically that Royal Finance Group has never tried to collect on the invoices for these vehicles, it is respectfully requested that the Court declare these invoices are null and void and that plaintiffs be released from liability therefrom.

The 2004 Volvo VNL (VIN#5476)

56. With respect to this vehicle, plaintiffs did not purchase it from the defendants.

After speaking with counsel for the defendants, plaintiffs were advised that the defendants did not issue a bill of lading for this vehicle. Upon information and belief, the invoice for this particular vehicle is fraudulent and MTL simply placed MAVL's name on this invoice. The basis for this belief is as follows:

57. After an investigation, I have ascertained that defendant Solovyev sold this vehicle in Russia. After speaking with the purchaser, I learned that Solovyev is now being sued in Russia by the purchaser due to Solovyev's failure to deliver the vehicle after retaining payment for it. Annexed hereto as **Exhibit "E"** is a copy of various documents which I received from the purchaser, and which include a copy of the contract of sale between Solovyev and the purchaser, as well as a copy of Solovyev's proof of Russian Citizenship which was sent to the purchaser when the purchase took place.³

58. Furthermore, the invoice for this vehicle, annexed to the Alper declaration as Exhibit "L" clearly indicates that the invoice is for inland freight, thus there is no legal basis for the defendants to exercise a maritime lien.

59. In light of the foregoing, MTL is not entitled to include this vehicle in their calculation for the sum to be posted in the bond.

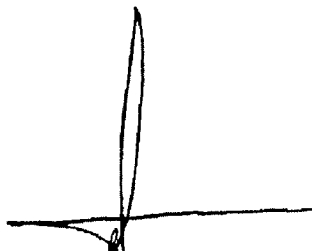
The 2012 Volkswagen Jetta (VIN #8564)

60. The invoice for this vehicle, annexed to the Alper declaration as Exhibit "K" clearly indicates that the invoice is for inland freight, thus there is no legal basis for the defendants to exercise a maritime lien.

61. I declare under penalty of perjury that the foregoing is true and correct.

³ These documents are in Russian and will be translated into English by a certified translator during the course of discovery.

Dated: New York, New York
April 9, 2014


Maxim Ostrovskiy

BILL OF LADING

Carrier has a policy against payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act, 1984 as amended.
DECLARED VALUE READ CLAUSE 28 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATION OF LIABILITY.

FREIGHT RATES, CHARGES, WEIGHTS AND/OR MEASUREMENTS		
SUBJECT TO CORRECTION	PREPAID	COLLECT
GRAND TOTAL		

RECEIVED, by the Carrier as described on the reverse hereof (hereinafter called the Carrier) from the above name shipper, the goods, or package said to contain goods, hereinabove described, in aparent good order and condition unless otherwise noted hereon, to be held and transported subject to all written, typed printed or stamped provisions of this bill of lading, on this and on the reverse side hereof, to the port or place of discharge named above or so near thereunto as the ship can always safely get and leave always afloat at the stages and conditions of water and weather and there to be delivered or transshipped on payment of the charges

DATED AT Bayonne

By Marine Transport Logistics
SIGNED ON BEHALF OF THE CARRIER

August 13 2013
MO. DAY YEAR

B/L No. HBOL15692

Payment must be received no later than 2 weeks after sailing date. Past Due Invoices are subject to mandatory Late Fee (\$50) and Documentation Fee (\$

Buyer Receipt



Paid At :

999 - Corporate
Two Westbrook Corporate Center Suite
500
Westchester IL 60154
Phone: (708) 492-7000

Receipt #	3679319
Receipt Date	10/8/2010
Received By	Jeff G
Sold At Branch	131 - Anaheim

Buyer #	128970
Buyer Name	Manhattan Auto Brokers Inc.
Dealer #	0900878
Resale Certificate #	0136491880
Registration Expires	11/9/2011

Stock File #	Sale Item #	Year	Make	Model	Color	Mileage	VIN	
000-06691840		2006	MERC	SL65AMG	Light Blue	60,484	WDBSK79F86F113072	
Invoice To:			Description			Charges	Payments	Balance
Manhattan Auto Brokers Inc. 100N Center Street LL123 Mishawaka, IN. 46544			Bid Amount Buyer Fee			25,220.00 395.00		
Check # / Reference No.								
Total Payment Amount: \$25,650.00								
			TOTAL			\$25,615.00	\$25,615.00	
Special Notes:								
Don't wreck your cash flow! Finance your IAA purchases with AFC. Visit www.buy-and-go.com or ask an IAA rep for details.								

atlantic cargo logistics

127 East New York Avenue
Deland, FL 32720

t 386-490-9743 f 407-574-7956
info@atlanticcargologistics.com
www.atlanticcargologistics.com

Invoice

Date	Due Date	Number
Nov/28/2012	Nov/28/2012	FLL11420

Bill to MAVL Capital, Inc. ct: Maxim Ostrovski 115 East 57th Street, Floor 11 maxim@autolehmann.ru New York, NY 10022. UNITED STATES
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Shipper: Consignee: Origin/Destination: Entry Date: Carrier: AWB / BL No.: House Way Bill: Pieces / Weight: Booking Number:	Cross Trans Services GmbH (c) Atlantic Cargo Logistics, LLC Nov/28/2012 CAXU691150-1 1 / 3000.00 lb
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Description of Charges	Quantity	Price	Amount
OCEAN FREIGHT settlement with Cross Trans Services GmbH	1.00	2485.00	2485.00
Customs Clearance Pass Through paid to Kilroy Customs Broker	1.00	1106.81	1106.81
Handling Fee paid to Maher Terminal	1.00	1700.00	1700.00
Inland Freight trucking to MTL and offloading	1.00	800.00	800.00
Handling Fee 4 wires / outlay of funds / coordination	1.00	225.00	225.00
TD Bank, 351 East New York Avenue, Deland FL 32724 ABA: 031101266 (domestic) or Swift: NRTHUS33XXX (int'l) credit to: Atlantic Cargo Logistics, LLC account number: 4268182262			

2006 Mercedes Benz SL65vin 113072

USD Amount	6316.81
Tax	0.00
Total	6316.81

Not ABI Certified

DEPARTMENT OF HOMELAND SECURITY
U.S. Customs and Border Protection

ENTRY SUMMARY

1. Filer Code/Entry No 819 0648937-2		2. Entry Type 01		3. Summary Date 11/23/2012	
4. Surety No. 856		5. Bond Type 9		6. Port Code 4601	
7. Entry Date		10. Country of Origin DE		11. Import Date 11/13/2012	
8. Importing Carrier 114W HANJIN PHOENIX COSU		9. Mode of Transport 11		12. B/L or AWB No. COSU4505431850	
13. Manufacturer ID DEOSTANA29OSN		14. Exporting Country DE		15. Export Date 10/31/2012	
16. I.T. No.		17. I.T. Date		18. Missing Docs	
19. Foreign Port of Lading 42870		20. U.S. Port of Unlading 4601		21. Location of Goods / G.O. No. E416 MAHER TERM BL	
22. Consignee No. 68-067685300		23. Importer No. 68-067685300		24. Reference No.	
25. Ultimate Consignee Name and Address Dest: NY City State Zip		26. Importer of Record Name and Address MAVLC MAVL CAPITAL INC 115 EAST 57TH STREET 11TH FLOOR City NEW YORK State NY Zip 10022			
27. Line No.		28. Description of Merchandise		32. A. Entered Value B. CHGS C. Relationship	
29. A. HTSUS No. B. ADA/CVD Case No.		30. A. Gross Weight B. Manifest Qty.		33. A. HTSUS Rate B. ADA/CVD Rate C. IRC Rate D. Visa No.	
31. Net Quantity In HTSUS Units				34. Duty and I.R. Tax Dollars Cents	
001	M COSU4505431850 AUTOMOBILE 1 PKGS VIN# WDBSK79F86F113072 Invoice Number - 01 OTH ARTCLS EXP REPAIR/ALT- 9802.00.5060 PASSG VEHIC:OTH-USED;CYL>30 8703.24.0090 1950 1 NO I.V. 48450.00 USD @ 1.000000 E.V. 48450.00 As 48450	RELATED 48000 450 C 1000	FREE 2.50%	0.00 11.25	
Harbor Maintenance				.125%	60.56
Other Fee Summary for Block 39 501 Harbor 60.56		35. Total Entered Value \$ 48450 Total Other Fees 60.56 \$		CBP USE ONLY A. LIQ CODE REASON CODE B. Ascertained Duty C. Ascertained Tax D. Ascertained Other E. Ascertained Total	
36. DECLARATION OF IMPORTER OF RECORD (OWNER OR PURCHASER) OR AUTHORIZED AGENT I declare that I am the ☐ Importer of record and that the actual owner, purchaser, or consignee for CBP purposes is as shown above, OR ☒ owner or purchaser or agent thereof. I further declare that the merchandise ☒ was obtained pursuant to a purchase or agreement to purchase and that the prices set forth in the invoices are true. OR ☐ was not obtained pursuant to a purchase or agreement to purchase and the statements in the invoices as to value or price are true to the best of my knowledge and belief. I also declare that the statements in the documents herein filed fully disclose to the best of my knowledge and belief the true prices, values, quantities, rebates, drawbacks, fees, commissions, and royalties and are true and correct, and that all goods or services provided to the seller of the merchandise either free or at reduced cost are fully disclosed. I will immediately furnish to the appropriate CBP officer any information showing a different statement of facts.				TOTALS 37. Duty 11.25 38. Tax 0.00 39. Other 60.56 40. Total 71.81	
41. DECLARANT NAME JOHN F. KILROY CO., INC.		TITLE Attorney-In-Fact		SIGNATURE JOHN F. KILROY CO., INC., ATT 11/23/2012	
42. Broker/Filer Information (Name, phone number) JOHN F. KILROY CO., INC. One Cross Island Plaza Rosedale, NY 11422 718-656-7818		43. Broker/Importer File No. 0002 648937 SG			

CBP Form 7501 (06/09)

** Last Page **